

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Patrick Yu	Team: Squad #3	CCRB Case #: 201902260	☒ Force	☐ Discourt.	☐ U.S.
			☐ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 02/28/2019 1:00 AM	Location of Incident: § 87(2)(b)	Precinct: 90	18 Mo. SOL 8/28/2020	EO SOL 4/14/2021	
Date/Time CV Reported Thu, 02/28/2019 1:53 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 03/14/2019 11:29 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. SGT Frederick Manney	04797	949938	090 PCT
2. Officers			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Toniann Groth	16687	957645	090 PCT
2. POM Rodney Fernandez	16671	957580	090 PCT
3. POM Jeremy Boyer	16826	936234	090 PCT
4. POM Francisco Martireyes	15296	951972	090 PCT

Officer(s)	Allegation	Investigator Recommendation
A.SGT Frederick Manney	Force: Sergeant Frederick Manney tasered § 87(2)(b)	§ 87(2)(b)
B. Officers	Force: Officer used physical force against § 87(2)(b)	§ 87(2)(b)

Case Summary

On February 28, 2019, Sergeant Manney of the 90th Precinct reported that force was used against § 87(2)(b) generating IAB log #19-7968. The CCRB received this case on March 14, 2019.

On March 19, 2019, a search of the NYC Department of Correction website indicated that § 87(2)(b) was incarcerated.

Between March 19, 2019, and April 3, 2019, six calls were made to § 87(2)(b)'s criminal attorney and six voicemail messages were left. On April 3, 2019, § 87(2)(b)'s criminal attorney called the undersigned and stated that another attorney was representing § 87(2)(b) and provided her contact information. On April 3, 2019, the undersigned spoke with § 87(2)(b)'s representing attorney and she wished to have the case closed pending litigation since § 87(2)(b) has pending criminal charges regarding his arrest during the incident. The undersigned explained to § 87(2)(b)'s attorney that she or § 87(2)(b) could send a letter at a later time requesting that the case be reopened. On April 3, 2019, the undersigned sent an open criminal case letter to § 87(2)(b) and his attorney reiterating the information.

§ 87(2)(g)

_____.

Squad No.: _____

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date